

26STCV05050 26STCV05050

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Motion to Strike

The Court tenders

the following tentative decision in the matter Terry Thomas-Austin, et al.

v. Celia Katzir, et al., Los Angeles County Superior Court case number 26STCV05050,

set for hearing on September 14, 2026. Celia Katzir (Defendant) moves to strike punitive damages allegations contained within the complaint of Terry Thomas-Austin, et al. (collectively, Plaintiffs).

Plaintiffs oppose the motion. Defendant's motion to strike is denied.

A. Legal Standard

The Court

may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The Court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the Court. (Id., § 436, subd. (b).)

The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Id., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Id., § 437.)

When a

demurrer is sustained or a motion to strike granted, the Court determines whether there is a reasonable possibility that the defect can be cured by amendment. (Blank, supra, 39 Cal.3d at p. 318.) When a plaintiff

“has pleaded the general set of facts upon which his cause of action is based,” the court should give the plaintiff an opportunity to amend his complaint,

since plaintiff should not “be deprived of his right to maintain his action on the ground that his pleadings were defective for lack of particulars.” (Reed v. Norman (1957) 152 Cal.App.2d 892, 900.)

B. Discussion

Defendant moves to strike Plaintiffs’

prayer for punitive damages and all paragraphs referencing punitive damages in the complaint as irrelevant and improper matters. (Code Civ. Proc., § 436, subd. (a).) A plaintiff may recover punitive damages where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) Malice is defined as conduct intended to injure the plaintiff or despicable conduct by a defendant acting with a willful and conscious disregard of the rights and safety of others. (Id., § 3294, subd. (c)(1).) Oppression means despicable conduct subjecting a person to cruel and unjust hardship in conscious disregard of their rights. (Id., § 3294, subd. (c)(2).) And fraud refers to intentional misrepresentations or concealment of a material fact known to the defendant. (Id., § 3294, subd. (c)(3).)

A plaintiff attempting to prove malice

or oppression must offer clear and convincing evidence of despicable conduct. (Mock v. Michigan Millers Mutual Ins. Co. (1992) 4 Cal.App.4th 306, 328 (Mock).)

This refers to conduct “so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.” (Id. at p. 331.) A claim for punitive damages is insufficient where it lacks a factual assertion supporting the conclusion that a party acted with oppression, malice, or fraud. (Smith v. Superior Court (1992) 10 Cal.App.4th 1033, 1042.)

Here, Plaintiffs allege that various

habitability issues arose on Defendant’s property, including a cockroach infestation, rodent infestation, water leaks and chronic mold, and general dilapidation. (Compl. ¶ 14.) Plaintiffs allege that Defendant had notice of these defects but failed to take timely or reasonable steps to remedy them. (Ibid.) Plaintiffs further allege that them and other past and current tenants of the property have complained about these defects before, but such complaints were repeatedly and intentionally ignored. (Id. ¶ 16.) This could constitute oppressive conduct and support a claim for punitive damages under section 3294, subdivision (c)(2).

Defendant argues that Plaintiffs cannot state a claim for punitive damages based on allegations of negligent conduct. However, Plaintiffs allege intentional conduct by Defendant as well, including Defendant's intentionally ignoring Plaintiffs' complaints. (Id. ¶ 16.) Additionally, Plaintiffs allege that they were intentionally harassed by Defendant. (Id. ¶ 32.) Thus, this argument is without merit.

Defendant also contends that Plaintiffs have not pled facts demonstrating malice, oppression, or fraud. But Plaintiffs have alleged that Defendant intentionally ignored requests to repair habitability defects that created a safety issue. Such conduct could constitute malice if a factfinder determined it to be despicable, as under the facts pled Defendant demonstrated a conscious disregard for Plaintiffs' rights and safety. Accordingly, Defendant's motion to strike is denied.

Conclusion:

Defendant's motion to strike is denied.